



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35577147

Date: JAN. 15, 2025

Appeal of Nebraska Service Center Decision

Form I-140, Immigrant Petition for Alien Workers (Extraordinary Ability)

The Petitioner, an accountant and business operations manager, seeks first preference immigrant classification as an individual of extraordinary ability. *See* Immigration and Nationality Act (the Act) section 203(b)(1)(A), 8 U.S.C. § 1153(b)(1)(A). This first preference classification makes immigrant visas available to those who can demonstrate their extraordinary ability through sustained national or international acclaim and whose achievements have been recognized in their field through extensive documentation.

The Director of the Nebraska Service Center denied the petition, concluding that the record did not establish that the Petitioner qualifies as an individual of extraordinary ability either as the recipient of a one-time achievement that is a major, internationally recognized award, or as someone who initially satisfied at least three of the ten required regulatory criteria listed at 8 C.F.R. § 204.5(h)(3)(i) – (x). The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal because the Petitioner did not establish that she meets the criterion at 8 C.F.R. § 204.5(h)(3)(ix).

The Petitioner also maintains that she meets the criteria at 8 C.F.R. § 204.5(h)(3)(ii) and (viii), which relate to membership in associations that require outstanding achievements and performance in a leading or critical role for distinguished organizations, respectively. However, because the Petitioner has not demonstrated that she meets the criterion at 8 C.F.R. § 204.5(h)(3)(ix), she would not establish that she met three out of ten criteria even if we considered her claims regarding the criteria at 8 C.F.R. § 204.5(h)(3)(ii) and (viii). As such, we need not determine whether she meets the requirements of these criteria, nor do we need to provide the type of final merits determination referenced in *Kazarian*, 596 F.3d at 1119-20. Accordingly, we will reserve these issues. *See INS v. Bagamasbad*, 429 U.S. 24, 25-26 (1976) (stating that, like courts, federal agencies are not generally required to make findings and decisions unnecessary to the results they reach).

I. LAW

Section 203(b)(1) of the Act makes visas available to immigrants with extraordinary ability if:

- (i) the alien has extraordinary ability in the sciences, arts, education, business, or athletics which has been demonstrated by sustained national or international acclaim and whose achievements have been recognized in the field through extensive documentation,
- (ii) the alien seeks to enter the United States to continue work in the area of extraordinary ability, and
- (iii) the alien's entry into the United States will substantially benefit prospectively the United States.

The term "extraordinary ability" refers only to those individuals in "that small percentage who have risen to the very top of the field of endeavor." 8 C.F.R. § 204.5(h)(2). The implementing regulation at 8 C.F.R. § 204.5(h)(3) sets forth a multi-part analysis. First, a petitioner can demonstrate international recognition of a beneficiary's achievements in the field through a one-time achievement (that is, a major, internationally recognized award). If the petitioner does not submit this evidence, then it must provide sufficient qualifying documentation demonstrating that the beneficiary meets at least three of the ten criteria listed at 8 C.F.R. § 204.5(h)(3)(i) – (x) (including items such as awards, published material in certain media, and scholarly articles).

Where a petitioner demonstrates that the beneficiary meets these initial evidence requirements, we then consider the totality of the material provided in a final merits determination and assess whether the record shows sustained national or international acclaim and demonstrates that the individual is among the small percentage at the very top of the field of endeavor. *See Kazarian v. USCIS*, 596 F.3d 1115 (9th Cir. 2010) (discussing a two-part review where the documentation is first counted and then, if fulfilling the required number of criteria, considered in the context of a final merits determination); *see also Visinscaia v. Beers*, 4 F. Supp. 3d 126, 131-32 (D.D.C. 2013); *Rijal v. USCIS*, 772 F. Supp. 2d 1339 (W.D. Wash. 2011).

II. ANALYSIS

In an autobiographical statement submitted in support of the petition, the Petitioner claimed that she is an individual possessing extraordinary ability as an accountant and business operations manager. The Petitioner listed her professional trajectory, highlighting her promotion from accountant to regional accounting manager with [REDACTED] which the Petitioner described as "one of the major wholesales" in Kazakhstan. She also provided the list of responsibilities associated with her latest position, which included various accounting tasks along with personnel management, which included overseeing 30 employees at six of the company's locations.

The Petitioner does not claim or submit evidence to show that she received a major, internationally recognized award. She must therefore provide evidence showing that she satisfies at least three of the alternate regulatory criteria at 8 C.F.R. § 204.5(h)(3)(i) – (x). The Petitioner claims that she meets the

elements of the three criteria at 8 C.F.R. § 204.5(h)(3)(ii), (viii), and (ix), which pertain to membership in associations that require outstanding achievements, performance in a leading or critical role for distinguished organizations, and commanding a high salary in relation to others in the field, respectively.

Because the Petitioner must demonstrate that she meets all three of the claimed criteria, failing to meet even one criterion would preclude a showing that she qualifies as an individual of extraordinary ability. The Petitioner in this instance did not demonstrate that she satisfied the requirements of the criterion at 8 C.F.R. § 204.5(h)(3)(ix), which requires evidence that the Petitioner's salary or remuneration was high relative to the compensation of others working in the field. The Petitioner's initial supporting evidence included general salary information published by the Office of National Statistics in Kazakhstan and did not include evidence of the Petitioner's own salary.

In response to the Director's request for evidence, the Petitioner provided a payroll document listing her monthly salary as [] "regional cost manager" from January 2022 through May 2023. She also provided a letter from the head of [] as well as salary statistics for accountants in Kazakhstan. Although the salary statistics show that the Petitioner's monthly salary was significantly higher than the average monthly salary of an accountant, neither the Petitioner nor her employer state that the Petitioner's position was solely that of an accountant. Rather, the head of [] listed the Petitioner's latest position as "Regional Accounting Manager for the North direction" and stated that aside from her "extensive experience in accounting and finance," the Petitioner's position also involved overseeing "six regional representative offices in Kazakhstan." Likewise, in her autobiographical statement the Petitioner similarly listed her position as "regional accounting manager" and included personnel management among her assigned responsibilities, alongside a variety of accounting duties. In other words, the record indicates that the Petitioner's latest position with [] was not limited to merely performing accounting tasks, but rather involved a management component that precludes the position from being deemed specifically that of accountant. Because the comparative data the Petitioner provided does not apply to the position she actually held, the Petitioner has not provided sufficient evidence to show that she commanded a salary that was high relative to others in her field.

III. CONCLUSION

The Petitioner has not shown that she met either a one-time award, or three of ten initial criteria. The Petitioner seeks a highly restrictive visa classification, intended for individuals already at the top of their respective fields. USCIS has long held that even athletes performing at the major league level do not automatically meet the "extraordinary ability" standard. *Matter of Price*, 20 I&N Dec. 953, 954 (Assoc. Comm'r 1994). Here, the Petitioner has not shown that the significance of her work is indicative of the required sustained national or international acclaim or that it is consistent with a "career of acclaimed work in the field" as contemplated by Congress. H.R. Rep. No. 101-723, 59 (Sept. 19, 1990); see also section 203(b)(1)(A) of the Act. Moreover, the record does not otherwise demonstrate that the Petitioner has garnered national or international acclaim in the field, and that she is one of the small percentage of individuals who have risen to the very top of the field of endeavor. See section 203(b)(1)(A) of the Act and 8 C.F.R. § 204.5(h)(2).

ORDER: The appeal is dismissed.